

[Official Emblem of Royal Command]

**Personal Data Protection Act,
B.E. 2562 (2019)**

**His Majesty King Phra Poramenthra Ramathibodi Sisin Maha Vajiralongkorn
Phra Vajira Klao Chao Yu Hua**

Given on the 24th Day of May B.E. 2562;
Being the 4th Year of the Present Reign.

His Majesty King Phra Poramenthra Ramathibodi Sisin Maha Vajiralongkorn Phra Vajira Klao Chao Yu Hua is graciously pleased to proclaim that:

Whereas it is expedient to have an enabling act on the law concerning personal data protection.

This Act contains certain provisions in relation to the restriction of rights and freedom of a person, which section 26, in conjunction with section 32, section 33 and section 37 of the Constitution of the Kingdom of Thailand so permit by virtue of the law.

The rationale and necessity to restrict the rights and freedom of a person in accordance with this Act are to efficiently protect personal data and put in place effective remedial measures for data subjects whose rights to the protection of personal data are violated. The enactment of this Act is consistent with the criteria prescribed under section 26 of the Constitution of the Kingdom of Thailand.

Be it, therefore, enacted by the King, by and with the advice and consent of the National Legislative Assembly acting as the parliament, as follows:

Section 1 This Act is called the "Personal Data Protection Act, B.E. 2562 (2019)"

Section 2 This Act shall come into force on the day following the date of its publication in the *Government Gazette*, except for the provisions of Chapter II, Chapter III, Chapter V, Chapter VI, Chapter VII, and section 95, and section 96, which shall come into effect after the lapse of a period of one year from the date of its publication in the *Government Gazette*.

Section 3 In the event that there is any sector-specific law governing the protection of Personal Data in any manner, any business or any entity, the provisions of such law shall apply, except:

(1) for the provisions with respect to the collection, use, or disclosure of Personal Data and the provisions with respect to the rights of data subjects including relevant penalties, the provisions of this Act shall apply additionally, regardless of whether they are repetitious with the above specific law;

(2) for the provisions with respect to complaints, provisions granting power to the expert committee to issue an order to protect the data subject, and provisions with respect to the power and duties of the Competent Official, including relevant penalties, the provisions of this Act shall apply in the following circumstances:

(a) in the event that such law has no provision with respect to complaints;

(b) in the event that such law has the provisions giving the power to the competent official, who has the power to consider the complaints under such law, to issue an order to protect the data subject, but such power is not equal to the power of the expert committee under this Act; and either the competent official who has power under such law makes a request to the expert committee, or data subject files a complaint with the expert committee under this Act, as the case may be.

Section 4 This Act shall not apply to:

(1) the collection, use, or disclosure of Personal Data by a Person who collects such Personal Data for personal benefit or household activity of such Person only;

(2) operations of public authorities having the duties to maintain state security, including financial security of the state or public safety, including the duties with respect to the prevention and suppression of money laundering, forensic science or cybersecurity;

(3) a Person or a juristic person who uses or discloses Personal Data that is collected only for the activities of mass media, fine arts, or literature, which are only in accordance with professional ethics or for public interest;

(4) The House of Representatives, the Senate, and the Parliament, including the committee appointed by the House of Representatives, the Senate, or the Parliament, which collect, use or disclose Personal Data in their consideration under the duties and power of the House of Representatives, the Senate, the Parliament or their committee, as the case may be;

(5) trial and adjudication of courts and work operations of officers in legal proceedings, legal execution, and deposit of property, including work operations in accordance with the criminal justice procedure;

(6) operations of data undertaken by a credit bureau company and its members, according to the law governing the operations of a credit bureau business.

The exceptions to apply all or parts of the provisions of this Act to any Data Controller in any manner, business or entity, in a similar manner to the Data Controller in paragraph one, or for any other public interest purpose, shall be promulgated in the form of the Royal Decree.

The Data Controller under paragraph one (2), (3), (4), (5), and (6) and the Data Controller of the entities that are exempted under the Royal Decree in accordance with paragraph two shall also put in place a security protection of Personal Data in accordance with the standard.

Section 5 This Act applies to the collection, use, or disclosure of Personal Data by a Data Controller or a Data Processor that is in the Kingdom of Thailand,

regardless of whether such collection, use, or disclosure takes place in the Kingdom of Thailand or not.

In the event that a Data Controller or a Data Processor is outside the Kingdom of Thailand, this Act shall apply to the collection, use, or disclosure of Personal Data of data subjects who are in the Kingdom of Thailand, where the activities of such Data Controller or Data Processor are the following activities:

- (1) the offering of goods or services to the data subjects who are in the Kingdom of Thailand, irrespective of whether the payment is made by the data subject;
- (2) the monitoring of the data subject's behavior, where the behavior takes place in the Kingdom of Thailand.

Section 6 In this Act,

“Personal Data” means any information relating to a Person, which enables the identification of such Person, whether directly or indirectly, but not including the information of the deceased Persons in particular;

“Data Controller” means a Person or a juristic person having the power and duties to make decisions regarding the collection, use, or disclosure of the Personal Data;

“Data Processor” means a Person or a juristic person who operates in relation to the collection, use, or disclosure of the Personal Data pursuant to the orders given by or on behalf of a Data Controller, whereby such Person or juristic person is not the Data Controller;

“Person” means a natural person;

“Committee” means the Personal Data Protection Committee;

“Competent Official” means any person appointed by the Minister to perform acts under this Act;

“Office” means the Office of the Personal Data Protection Committee;

“Secretary-General” means the Secretary-General of the Personal Data Protection Committee;

“Minister” means the Minister who is in charge under this Act.

Section 7 The Minister of Digital Economy and Society shall be in charge under this Act, and shall have the power to appoint the Competent Official to perform acts under this Act.

Chapter I

Personal Data Protection Committee

Section 8 There shall be a Personal Data Protection Committee, consisting of:

- (1) a Chairperson who is selected and appointed from persons having distinguished knowledge, skills, and experience in the field of Personal Data protection, consumer protection, information technology and communication, social science, law, health, finance, or any other field that must be relevant to, and useful for the protection of Personal

Data;

(2) the Permanent Secretary of the Ministry of Digital Economy and Society, shall be a Vice-Chairperson;

(3) directors by position as five members consisting of the Permanent Secretary of the Prime Minister Office, the Secretary-General of the Council of State, the Secretary-General of the Consumer Protection Board, the Director-General of the Rights and Liberties Protection Department, and the Attorney General;

(4) honorary directors as nine members, selected and appointed from the persons having distinguished knowledge, skills, and experience in the field of Personal Data protection, consumer protection, information technology and communication, social science, law, health, finance, or any other field that must be relevant to, and useful for the protection of Personal Data.

The Secretary-General shall be a director and secretary, and the Secretary-General shall appoint assistant secretaries from the officials of the Office not exceeding two persons.

The rules and procedures on the selection of persons to be appointed as the Chairperson and honorary directors, including the selection of the Chairperson and honorary director to replace the Chairperson and the honorary director who vacates office before the expiration of the term under section 13, shall be as prescribed by the notification issued by the Cabinet by taking into account the transparency and fairness in the selection.

Section 9 There shall be a selection committee of eight members having the duty to select the appropriate persons who should be appointed as the Chairperson in section 8(1) or the honorary director in section 8 (4), consisting of:

- (1) two persons appointed by the Prime Minister;
- (2) two persons appointed by the President of the Parliament;
- (3) two persons appointed by the Ombudsman;
- (4) two persons appointed by the National Human Rights Commission.

In the event that the person having the appointment power in (2), (3), or (4) is unable to appoint members of the selection committee in his part within forty- five days from the date of notice from the Office, the Office shall nominate the persons to the Prime Minister to consider and appoint the appropriate persons to be the selection committee on behalf of such person having the appointment power.

The selection committee shall select one member to act as the Chairperson of the selection committee and another one member to act as the Secretary of the selection committee and the Office shall perform the duty as the administrative unit of the selection committee.

In the event that any member of the selection committee is vacant, a new member must be selected to replace such vacancy without delay. During the time that no new member has been selected, the selection committee shall consist of the existing members.

No member of the section committee shall be entitled to be nominated as the Chairperson in section 8 (1) or the honorary director in section 8 (4).

Section 10 In selecting the Chairperson in section 8 (1) or the honorary

director in section 8 (4), the selection committee shall select the persons who have qualifications in section 8 (1) or section 8 (4) as the case may be, including having the qualifications and no prohibited characteristics under section 11 and agree to be nominated for the selection in the same number as the number of Chairperson to be appointed in section 8 (1) or the number of the honorary director in to be appointed in section 8 (4).

After the Chairperson in section 8 (1) or the honorary director in section 8 (4) have been selected, the selection committee shall submit the name of Chairperson in section 8 (1) or the honorary director in section 8 (4) together with the evidence of qualifications and no prohibited characteristics as well as the consent of such persons to the Cabinet for the appointment as the Chairperson in section 8 (1) or the honorary director in section 8 (4).

The Prime Minister shall publish names of the Chairperson in section 8 (1) or honorary directors in section 8 (4) who are appointed by the Cabinet in the *Government Gazette*.

Section 11 The Chairperson and the honorary director shall have the qualifications, and shall not be under the following prohibited characteristics:

- (1) being of Thai nationality;
- (2) not being bankrupt, or having been previously dishonestly bankrupt;
- (3) not being an incompetent or quasi-incompetent person;
- (4) not having been previously subjected to a final judgment to imprisonment regardless of whether he or she has actually been imprisoned or not, except for an offence committed by negligence or a misdemeanor; -
- (5) not having been previously fired, dismissed or discharged from official service, a government agency or a state enterprise or private agency on the grounds of dishonest performance of duties or having committed severe wrongful conducts;
- (6) not having been previously removed from office according to the law;
- (7) not being a person holding political position, a member of local assembly or in a management position of local administration, a director or person holding position responsible for the management of political party, an adviser or officer of political party.

Section 12 The Chairperson and the honorary director shall hold office for a term of four years.

Upon the expiration of the term of office under paragraph one, if a new Chairperson or the honorary director has not yet been appointed, the Chairperson or the honorary director whose term of office has expired, shall be in office to continue to perform his or her duties until a new Chairperson or honorary director assumes his or her duties.

The Chairperson, or the honorary director, who vacates office upon the expiration of the term, may be reappointed, but shall not seat in his or her office for more than two terms.

Section 13 In addition to vacating office upon the expiration of the term under section 12, the Chairperson and the honorary director vacates office upon:

- (1) death;
- (2) resignation;
- (3) being dismissed by the Cabinet due to negligence in the performance of duty, disgraceful behavior, or incapability;
- (4) being disqualified, or under any of the prohibited characteristics under

section 11.

In the case where the Chairperson or the honorary director vacates office before the expiration of the term, the person appointed to replace the vacant office shall be in office for the remaining term of office of such vacated Chairperson or honorary director, except where the remaining term of office is less than ninety days, in which case the appointment of a new Chairperson or a new honorary director may not have to be made.

In the case where the Chairperson or the honorary director vacates office before the expiration of the term, the Committee shall consist of all existing members until a new Chairperson or a new honorary director is appointed, according to paragraph two, and in the case where the Chairperson vacates office before the expiration of the term, the Vice-Chairperson shall temporarily perform duties of the Chairperson.

Section 14 At a meeting of the Committee, the presence of not less than one-half of all the members is required to constitute a quorum.

The Chairperson shall preside over the meeting. In the case where the Chairperson does not attend the meeting, or is unable to perform the duties, the Vice-Chairperson shall act as a chairperson of the meeting. In the case where the Chairperson and the Vice-Chairperson do not attend the meeting, or are unable to perform the duties, the attending members shall elect one member among themselves to be the chairperson of the meeting.

A decision of the meeting shall be made by a majority of votes. Each member shall have one vote. In case of equal votes, the chairperson of the meeting shall have an additional vote as the decisive vote.

The meetings of the Committee may be undertaken by electronic means, or any other means, as prescribed by the Committee.

Section 15 Any member who has a direct or indirect interest in the matter being considered in the meeting, shall inform the Committee of such interest prior to the meeting, and such member shall be prohibited from attending the meeting that is considering such matter.

Section 16 The Committee shall have the following duties and power:

(1) to make the master plan on the operation for the promotion and protection of Personal Data, which are consistent with policies, national strategies and relevant national plans, in order to propose to the committee of the national digital economy and society, in accordance with the law governing development of the digital economy and society;

(2) to promote and support government agencies and the private sector in carrying out of activities in accordance with the master plan under (1), as well as to conduct the evaluation of the operation result of such master plan;

(3) to determine measures or guidelines of the operation in relation to Personal Data protection in order to comply with this Act;

(4) to issue notifications or rules for the execution of this Act;

(5) to announce and establish criteria for providing protection of Personal Data which is sent or transferred to a foreign country;

(6) to announce and establish guidance for the protection of Personal Data as guidelines which the Data Controller and the Data Processor shall comply;

(7) to recommend the Cabinet on the enactment, or revision, of the existing laws or rules applicable to the protection of Personal Data;

(8) to recommend the Cabinet on the enactment of the Royal Decree or reconsideration the suitability of this Act at least every five years;

(9) to provide advice or consultancy on any operation for the protection of Personal Data of the government agency and private agency, in acting in compliance with this Act;

(10) to interpret and render rulings with respect to the issues arising from the enforcement of this Act;

(11) to promote and support learning skills and understanding on the protection of Personal Data among the public;

(12) to promote and support research for the development of technology relating to the protection of Personal Data;

(13) to perform any other acts as prescribed by this Act, or other laws, which state the duties and power of the Committee.

Section 17 The Chairperson, the Vice-Chairperson, and Committee shall receive a meeting allowance and other benefits in accordance with the rules prescribed by the Cabinet.

The Chairperson of the sub-committees, the sub-committees, the Chairperson of the expert committee and expert committee appointed by the Committee shall receive a meeting allowance and other benefits in accordance with the rules prescribed by the Committee with approval of the Ministry of Finance.

Section 18 The Committee shall have the power to appoint sub-committees for considering or performing any act as prescribed by the Committee.

In the meeting of the sub-committee, the substances of sections 14 and 15 shall apply *mutatis mutandis*.

Chapter II

Personal Data Protection

Part 1 General Provisions

Section 19 The Data Controller shall not collect, use, or disclose Personal Data, unless the data subject has given consent prior to or at the time of such collection, use, or disclosure, except the case where it is permitted to do so by the provisions of this Act or any other laws.

A request for consent shall be explicitly made in a written statement, or via electronic means, unless it cannot be done by its nature.

In requesting consent from the data subject, the Personal Data Controller shall also inform the purpose of the collection, use, or disclosure of the Personal Data. Such request for consent shall be presented in a manner which is clearly distinguishable from the other matters, in an easily accessible and intelligible form and statements, using clear and plain language, and

does not deceive or mislead the data subject in respect to such purpose. In this regard, the Committee may require the Data Controller to request for data subject's consent in accordance with the form and statements as prescribed by the Committee.

In requesting consent from the data subject, the Data Controller shall utmost take into account that the data subject's consent is freely given. Also, the entering into the contract, including any provisions of the service shall not be a condition to obtaining consent for the collection, use, or disclosure of Personal Data that is not necessary or not related to such contract entering, including the provisions of the service.

The data subject may withdraw his or her consent at any time. The withdrawal of consent shall be as easy as to giving consent, unless there is a restriction of the withdrawal of consent by law, or the contract which gives benefits to the data subject. However, the withdrawal of consent shall not affect the collection, use, or disclosure of personal data that the data subject has already given consent legally under this Chapter.

In the event that the withdrawal of consent will affect the data subject in any manner, the Data Controller shall inform the data subject of such consequences of consent's withdrawal.

The request for the data subject's consent which is not in accordance with those prescribed in this Chapter shall have no binding effect on the data subject and shall no longer enable the Data Controller to collect, use, or disclose the Personal Data.

Section 20 In the event that the data subject is a minor who is not sui juris by marriage or has no capacity as a sui juris person under section 27 of the Civil and Commercial Code, the request for the consent from such data subject shall be made as follows:

(1) In the event that the minor's giving of consent is not any act which the minor may be entitled to act alone as prescribed under section 22, section 23, or section 24 of the Civil and Commercial Code, such act also requires consent of the holder of parental responsibility over the child;

(2) Where the minor is below the age of ten years, the consent shall be obtained from the holder of parental responsibility over the child.

In the event that the data subject is incompetent, the consent must be obtained from the custodian who has the power to act on behalf of the incompetent person.

In the event that the data subject is quasi-incompetent, the consent must be obtained from the curator who has the power to act on behalf of the quasi-incompetent person.

The provisions of paragraphs one, two, and three shall apply *mutatis mutandis* to the withdrawal of consent of the data subject, the notice given to the data subject, the exercise of rights of the data subject, the complaint of the data subject, and any other acts under this Act for the data subject who is a minor, an incompetent or quasi-incompetent person.

Section 21 The Data Controller shall collect, use, or disclose Personal Data according to the purpose notified to the data subject prior to or at the time of such collection.

The collection, use, or disclosure of Personal Data shall not be conducted in a manner that is different from the purpose previously notified to the data subject in accordance with paragraph one, unless:

(1) the data subject has been informed of such new purpose, and the consent is obtained prior to the time of collection, use, or disclosure;

(2) it can be done by the provisions of this Act or in other laws.

Part 2

Personal Data Collection

Section 22 The collection of Personal Data shall be limited to the extent necessary in relation to the lawful purpose of the Data Controller.

Section 23 In collecting the Personal Data, the Data Controller shall inform the data subject, prior to or at the time of such collection, of the following details, except the case where the data subject already knows of such details:

(1) the purpose of the collection for use or disclosure of the Personal Data, including the purpose which is permitted under section 24 for the collection of Personal Data without the data subject's consent;

(2) notification of the case where the data subject must provide his or her Personal Data for compliance with a law, or contract, or where it is necessary to provide the Personal Data for the purpose of entering into the contract, including notification of the possible effect where the data subject does not provide such Personal Data;

(3) the Personal Data to be collected and the period for which the Personal Data will be retained. If it is not possible to specify the retention period, the expected data retention period according to the data retention standard shall be specified;

(4) the categories of Persons or entities to whom the collected Personal Data may be disclosed;

(5) information, address, and the contact channel details of the Data Controller, where applicable, of the Data Controller's representative or data protection officer;

(6) the rights of the data subject under section 19 paragraph five, section 30 paragraph one, section 31 paragraph one, section 32 paragraph one, section 33 paragraph one, section 34 paragraph one, section 36 paragraph one, and section 73 paragraph one.

Section 24 The Data Controller shall not collect Personal Data without the consent of the data subject, unless:

(1) it is for the achievement of the purpose relating to the preparation of the historical documents or the archives for public interest, or for the purpose relating to research or statistics, in which the suitable measures to safeguard the data subject's rights and freedoms are put in place and in accordance with the notification as prescribed by the Committee;

(2) it is for preventing or suppressing a danger to a Person's life, body or health;

(3) it is necessary for the performance of a contract to which the data subject is a party, or in order to take steps at the request of the data subject prior to entering into a contract;

(4) it is necessary for the performance of a task carried out in the public interest by the Data Controller, or it is necessary for the exercising of official authority vested in the Data Controller;

(5) it is necessary for legitimate interests of the Data Controller or any other Persons or juristic persons other than the Data Controller, except where such interests are

overridden by the fundamental rights of the data subject of his or her Personal Data;

(6) it is necessary for compliance with a law to which the Data Controller is subjected.

Section 25 The Data Controller shall not collect Personal Data from any other source, apart from the data subject directly, except where:

(1) the Data Controller has informed the data subject of the collection of Personal Data from other source without delay, but shall not exceed thirty days upon the date of such collection, and has obtained the consent from the data subject;

(2) it is a collection of Personal Data which falls within the exceptions to request consent under section 24 or section 26.

The provisions with respect to notice of the new purpose in section 21, and the notice of information details in section 23 shall apply *mutatis mutandis* to the collection of the Personal Data which requires consent in paragraph one, except for the following circumstances:

(1) the data subject has been aware of such new purposes or details;

(2) the Data Controller can prove that the notice of such new purposes or information details is impossible or will obstruct the use or disclosure of the Personal Data, in particular for achieving the purposes in relation to scientific, historical, or statistical research purposes. In such cases, the Data Controller shall take suitable measures to protect the data subject's rights, freedoms and interests;

(3) the use or disclosure of the Personal Data shall be carried out on an urgent basis as required by law, and suitable measures have been implemented to protect the data subject's interest;

(4) the Data Controller is aware of or acquires such Personal Data from his or her duty or occupation or profession, and shall maintain new purposes or certain information details as prescribed in section 23 with confidentiality as required by law.

To notify the information detailed in paragraph two, the Data Controller shall provide such information to the data subject within thirty days after the date of collection such of Personal Data, unless the Personal Data are to be used for communication with the data subject, the notice of information details shall be provided at the time of the first communication to that data subject. If a disclosure to another Person is envisaged, the notice of information details shall be provided prior to the time of the first disclosure.

Section 26 Any collection of Personal Data pertaining to racial, ethnic origin, political opinions, cult, religious or philosophical beliefs, sexual behavior, criminal records, health data, disability, trade union information, genetic data, biometric data, or of any data which may affect the data subject in the same manner, as prescribed by the Committee, is prohibited, without the explicit consent from the data subject, except where:

it is to prevent or suppress a danger to life, body or health of the Person, where the data subject is incapable of giving consent by whatever reason;

it is carried out in the course of legitimate activities with appropriate safeguards by the foundations, associations or any other not-for-profit bodies with a political, religious, philosophical, or trade union purposes for their members, former members of the bodies, or persons having regular contact with such foundations, associations or not-for-profit bodies in

connection with their purposes, without disclosing the Personal Data outside of such foundations, associations or not-for-profit bodies;

(1) it is information that is disclosed to the public with the explicit consent of the data subject;

(2) it is necessary for the establishment, compliance, exercise or defense of legal claims;

(3) it is necessary for compliance with a law to achieve the purposes with respect to:

(a) preventive medicine or occupational medicine, the assessment of working capacity of the employee, medical diagnosis, the provision of health or social care, medical treatment, the management of health or social care systems and services. In the event that it is not for compliance with the law, and such Personal Data is under the responsibility of the occupational or profession practitioner or person having the duty to keep such Personal Data as confidential under the law, it must be for compliance with the contract between the data subject and the medical practitioner;

(b) public interest in public health, such as protecting against cross-border dangerous contagious disease or epidemics which may be contagious or pestilent, or ensuring standards or quality of medicines, medicinal products or medical devices, on the basis that there is a provision of suitable and specific measures to safeguard the rights and freedom of the data subject, in particular maintaining the confidentiality of Personal Data in accordance with the duties or professional ethics;

(c) employment protection, social security, national health security, social health welfare of the entitled person by law, the road accident victims protection, or social protection in which the collection of Personal Data is necessary for exercising the rights or carrying out the obligations of the Data Controller or the data subject, by providing the suitable measures to protect the fundamental rights and interest of the data subject;

(d) it is for the scientific, historical, or statistic research purposes, or other public interests which must be carried out only to the extent necessary to achieve such purposes, and the suitable measures have been provided to protect the fundamental rights and interest of the data subject as prescribed by the Committee;

(e) the substantial public interest, by providing the suitable measures to protect the fundamental rights and interest of the data subject.

The biometric data in paragraph one shall mean the Personal Data arising from the use of technics or technology related to the physical or behavioral dominance of Person, which can be used to identify such Person apart from other Persons, such as the facial recognition data, iris recognition data or fingerprint recognition data.

In the case of the collection of the Personal Data relating to criminal record, such collection shall be carried out under the control of authorized official authority under the law, or the data protection measure has been implemented according to rules prescribed by the Committee.

Part 3

Use or Disclosure of Personal Data

Section 27 The Data Controller shall not use or disclose Personal Data without the consent of the data subject, unless it is the Personal Data which is collected without requirement of consent under section 24 or section 26.

The Person or juristic person who obtains Personal Data as a result of the disclosure under paragraph one shall not use or disclose such Personal Data for any purpose other than the purpose previously notified to the Data Controller in the request to obtain such Personal Data.

In the event that the Data Controller uses or discloses the Personal Data which is exempted from consent requirement in paragraph one, the Data Controller shall maintain a record of such use or disclosure in the record under section 39.

Section 28 In the event that the Data Controller sends or transfers the Personal Data to a foreign country, the destination country or international organization that receives such Personal Data shall have adequate data protection standard, and shall be carried out in accordance with the rules for the protection of Personal Data as prescribed by the Committee in section 16(5), except in the following circumstances:

- (1) where it is for compliance with the law;
- (2) where the consent of the data subject has been obtained, provided that the data subject has been informed of the inadequate Personal Data protection standards of the destination country or international organization;
- (3) where it is necessary for the performance of a contract to which the data subject is a party, or in order to take steps at the request of the data subject prior to entering into a contract;
- (4) where it is for compliance with a contract between the Data Controller, and other Persons or juristic persons for the interests of the data subject;
- (5) where it is to prevent or suppress a danger to the life, body, or health of the data subject or other Persons, when the data subject is incapable of giving the consent at such time;
- (6) where it is necessary for carrying out the activities in relation to substantial public interest.

In the event that there is a problem with regard to the adequacy of Personal Data protection standards of the destination country or international organization, such problem shall be submitted to the Committee to decide. The decision made by the Committee may be reviewed when there is a new evidence convincing that the destination country or international organization that receives such Personal Data has developed adequate Personal Data protection standards.

Section 29 In the event that the Data Controller or the Data Processor who is in the Kingdom of Thailand has put in place a Personal Data protection policy regarding the sending or transferring of Personal Data to another Data Controller or Data Processor who is in a foreign country, and is in the same affiliated business, or is in the same group of undertakings, in order to jointly operate the business or group of undertakings. If such Personal Data protection policy has been reviewed and certified by the Office, the sending or transferring of Personal Data

to a foreign country, which is in accordance with such reviewed and certified Personal Data protection policy, can be carried out and shall be exempt from compliance with section 28.

The Personal Data protection policy, the nature of the same affiliated undertaking or affiliated business in order to jointly operate the undertaking or business, and the rules and methods for the review and certification in paragraph one shall be as prescribed and announced by the Committee.

In the absent of a decision by the Committee in accordance with section 28, or the Personal Data protection policy referred in paragraph one, the Data Controller or the Data Processor may send or transfer the Personal Data to a foreign country in exemption to compliance with section 28, if the Data Controller or the Data Processor provides suitable protection measures which enable the enforcement of the data subject's rights, including effective legal remedial measures according to the rules and methods as prescribed and announced by the Committee.